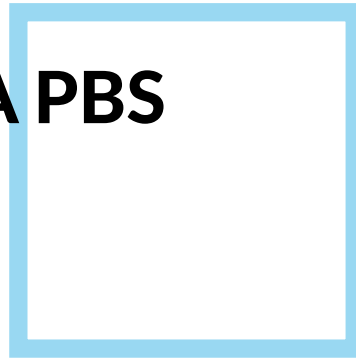


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FAMILY MEMBER OF A PBS MIGRANT VISA



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FAMILY MEMBER OF A PBS MIGRANT VISA

The Family Member of a PBS Migrant visa category is for partners and children of points-based system migrants to enter and remain the UK with their family member. To apply in this category, you must be related to a PBS migrant as either their husband, wife, civil partner, unmarried partner, same sex partner or child (under the age of 18 at first application).

Requirements for a Family Member of a PBS Migrant visa

In order to qualify for entry clearance or leave to remain as the partner of a PBS migrant, you will need to satisfy UK Visas and Immigration that:

- You are over the age of 18;
- You are the spouse, civil partner, unmarried partner or same sex partner of a person who has leave as a PBS migrant, is being granted leave at the same time as a PBS migrant or, if applying for an extension of stay, your partner has ILR as a PBS migrant or has obtained British citizenship after having ILR as PBS migrant;
- If you are the unmarried or same-sex partner of a PBS migrant, you have been living in a relationship similar to marriage or civil partnership for a period of at least 2 years;
- Your relationship with the PBS migrant is subsisting and you intend to live together throughout the PBS migrant's stay in the UK;
- You do not intend to stay in the UK beyond any period of leave granted to the PBS migrant;
- You satisfy a maintenance funds requirement (unless the PBS migrant is a **Tier 1 Investor** (<https://immigrationbarrister.co.uk/personal-immigration/investor-visas/>) migrant);
- If applying for leave to remain, you were not last granted entry clearance or leave as a visitor, short-term student, temporary admission or temporary release;

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- If over 18 and seeking entry as a partner of a Tier 1 Investor or Tier 1 Entrepreneur, you have provided a criminal record certificate from the relevant authority in any country in which you have been present for 12 months or more in the past 10 years while aged 18 or over.

To be granted entry clearance or leave to remain as the child of a PBS migrant, you will need to satisfy UK Visas and Immigration that:

- You are the child of a person who has leave as a PBS migrant, is being granted leave (including ILR) at the same time as a PBS migrant, or has indefinite leave to remain or British citizenship and who was last granted ILR under the rules relating to Tier 1, 2 or 5;
- You are under the age of 18 on the date of application, unless you are applying for leave to remain and were last granted leave as the child of a PBS migrant or the child of a migrant granted leave under a different category of the rules who has since been granted leave as a PBS migrant or who is applying for leave as a PBS migrant at the same time;
- You are not married or in a civil partnership, have not formed an independent family unit and are not leading an independent life;
- You do not intend to stay in the UK beyond any period of leave granted to the PBS migrant;
- Both of your parents are lawfully present in the UK or being granted entry clearance or leave to remain at the same time, unless:
 - the PBS migrant is your sole surviving parent;
 - the PBS migrant has and has had sole responsibility for your upbringing;
 - there are serious or compelling family or other considerations which would make it desirable not to refuse the application and suitable arrangements have been made for your care in the UK;
- You satisfy a maintenance funds requirement (unless the PBS migrant is a Tier 1 Investor migrant)

The exact requirements you will need to satisfy will vary depending on your circumstances. You may want to speak to an immigration lawyer for expert advice.

To discuss your Family Member of a Points-Based System Migrant visa application with one of our immigration barristers, contact our PBS Dependant visa lawyers on 0203 617 9173 or complete our enquiry form below.

What else do I need to know about the Family Member of a PBS Migrant visa?

If your application for a Family Member of a PBS Migrant visa is successful, you will generally be granted leave in line with the expiry date of the PBS migrant's leave. Where the PBS migrant has been granted indefinite leave to remain, you will be granted a period of three years leave. An application for further leave can then be made, if required, to take you up to the applicable qualifying period for indefinite leave to remain.

If the main migrant changes employer or educational institution, PBS dependants can remain in the UK until the end of the validity period of their existing PBS dependant leave. (<https://www.google.co.uk/search?q=richmond+chambers+immigration+barristers>)

Partners of PBS migrants granted leave since 11 January 2018 will need to satisfy a 180 day residence requirement when applying for indefinite leave to remain. The Home Office will consider absences from the UK on a rolling basis, rather than in separate consecutive 12-month periods.

Children over the age of 18 who have not previously been granted leave as the family member of a PBS migrant cannot be granted leave in this category. Similarly, other relatives, for example parents or grandparents, cannot apply in this category.

How our immigration barristers can help

Our immigration barristers regularly assist family members of points-based system migrants to relocate to, and settle in, the UK with their partners and parents.

Whether you require expert advice on the requirements of the **Immigration Rules** (<https://www.gov.uk/guidance/immigration-rules>), an independent assessment of your prospects of qualifying for a visa or professional assistance with preparing an immigration application, our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to EEA nationals and their family members as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Applications for extension of stay as a Family Member of a PBS Migrant

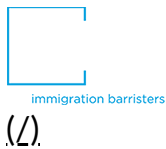


Applications for settlement as a Family Member of a PBS Migrant



Fresh applications, Administrative reviews and Judicial reviews for Family Members of PBS Migrants





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WHAT CAN WE HELP YOU WITH?

To discuss your application for a Family Member of a PBS Migrant visa with one of our immigration barristers, contact our Family Member of a PBS Migrant visa team on 0203 617 9173 or complete our enquiry form.

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New 180 day residence requirement for ILR as a PBS dependent partner

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By Dr. Catherine Taroni - Barrister Partner

13 Dec 2017

At present, there is no residence requirement for PBS dependants to obtain indefinite leave to remain. They simply have to have been in the category for five years as a family member, and to meet the other requirements...

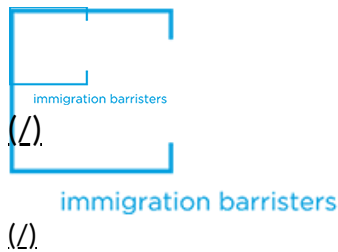
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(UK)

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LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)
E / info@richmondchambers.com (mailto:info@richmondchambers.com)

MONTREUX OFFICE

Avenue Des Alpes 80B
Montreux 1820
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)
E / info@richmondchambers.ch (mailto:info@richmondchambers.ch)

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